

Court No. - 29

Case :- WRIT - C No. - 4004 of 2016

Petitioner :- Mahboob Ahmad

Respondent :- Electricity Corp. Ltd. And 2 Others

Counsel for Petitioner :- Mohd. Aslam Khan,Pranjal Mehrotra

Counsel for Respondent :- C.S.C.

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the petitioner and Sri Pranjal Mehrotra, Advocate for the opposite party Nos. 1 and 2.

Mahboob Ahmad is before this Court with request to quash the impugned recovery notice dated 14.10.2015.

The factual situation that is so emerging that an F.I.R., dated 15.07.2014 bearing case crime no. 335 of 2014 under Section 135 of Electricity Act, 2003 Police Station Chandpur District Bijnor has been lodged against the petitioner. This much is also reflected that thereafter the amount in question has been quantified by way of assessment under Section 126 of the Electricity Act 2003. This much is also clear from the record in question that thereafter in consonance with the provisions as provided for under U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958 notice had been sent to the petitioner for depositing assessed amount in question and when the said amount in question has not been paid within time frame provided for, recovery proceedings has been initiated. Once such is the factual situation that assessment exercise has been undertaken and pursuant to the said assessment in question the petitioner had been asked to make deposit in question and when said deposit in question has not at all been made then recovery proceedings in question has been initiated against the petitioner.

In view of this, we see no infirmity with the recovery in question being so made, accordingly as far as we are concerned we cannot come to the rescue and reprieve of the petitioner. However, it will be open for the petitioner to question the validity of the assessment so made in case he chooses to challenge the same before the competent authority under provisions of Electricity Act, 2003 read with U.P. Electricity Supply Code 2005.

Writ petition is **dismissed** accordingly.

Order Date :- 5.2.2016

Jaswant